

3 Social media jurisprudence

The European Court of Human Rights

Lorna Woods

1. Introduction

The European Court of Human Rights (ECtHR) has recognised the impact of the Internet as a communication and information tool. Of the many types of service available, social media has become the prevalent – perhaps dominant – form of service, allowing users easily to contribute, share and re-share content, as well as to receive information.¹ The ability for private individuals to engage with disparate audiences means that the Internet, but specifically social media, is potentially uniquely democratic, allowing a platform for alternative and dissenting views. Yet, problems are evident, including: child abuse; hate speech; dis/misinformation.² Social media platforms are an important venue for the exercise of rights but also have the potential to undermine democracy, equality and human rights. Consequently, government intervention is increasing, with impacts on human rights too.

While fundamental rights should apply no matter the communications technologies used, the respective affordances of different technologies may give rise to distinct issues. Although social media shares some of the key attributes of the Internet that distinguish it from offline communications systems – scale, reach, speed – differences exist. While the Internet and its management are decentralised,³ mainstream social media currently provides a locus of activity, hosting content, as well as being an organising entity⁴ of content provider by its users. Whether centralised or not, choices about control and organisation have an impact on the content (e.g. its existence and visibility) on the site, influencing users' expression rights, impacting their privacy and constraining their autonomy,⁵ and potentially constitute a form of expression in itself. Indeed, there are wider questions about the nature of speech and who is a speaker in digital environments. Nonetheless, the relationship between platforms' or instances' choices about control and organisation and the extent of their consequent awareness of and responsibility for different types of content is, however, one of the key issues in this field. Personalisation – one of the main tools deployed by platforms in selecting content for users' attention – has raised questions about the impact of “surveillance capitalism”⁶

on a marketplace of ideas, as well as the privatisation of control over speech (whether in furtherance of a government agenda or not⁷).

Against this background, this chapter explores the extent to which the principles developed offline by the ECtHR in relation to rights offline may be straightforwardly applied online and highlights issues that are particularly relevant to social media. In considering the jurisprudence, the chapter identifies two broad groups of issues: those dealing with the position of social media platforms and the digital environment itself; and those pertaining to the content on those platforms – notably, hate speech and disinformation. It also notes the extent to which these developments take place within a closed system of ECHR case law and the extent to which developments in other arenas are taken into account.

2. Applicability of Article 10 ECHR to social media

The ECtHR has seen social media through the framework of Article 10 of the European Convention on Human Rights (ECHR).⁸ This is unsurprising. It has historically taken a technology-neutral approach to the material scope of the right and has accepted that other types of online service (e.g. peer-to-peer networks⁹) are protected by Article 10 ECHR.¹⁰ Freedom of expression famously protects the offensive, shocking and disturbing in the interests of tolerance and pluralism.¹¹ Moreover, the Internet is an “unprecedented platform for the exercise of freedom of expression”.¹² Article 10 ECHR – whether online or off – is not unlimited,¹³ but any interference must be justified in accordance with Article 10(2) ECHR: the restriction should be lawful, for a legitimate purpose (as identified in Article 10(2) ECHR, or the last sentence of Article 10(1) ECHR) and necessary in a democratic society. The nature of any penalties imposed on speech is a significant factor in the finding of or lack of proportionality, and the ECtHR is sensitive to concerns around censorship, as we shall see later. The extent to which the national authorities have considered the impact on fundamental rights will also be a factor; a national rule that is, in principle, unproblematic can still constitute an interference with rights, if badly applied.¹⁴

The ECtHR has taken a wide view of when expression is involved (including naked hiking¹⁵ or the wearing of symbols¹⁶), suggesting that communicative shortcuts – e.g. emojis, likes, up/down-votes – should all be protected. In *Melike*, clicking the like button was held to show approval of the content liked and, as such, was a form of exercising freedom of expression online.¹⁷ Uploading material or sharing it – even without comment – also constitutes expression.¹⁸ Interference with the means of dissemination, as well as with the speech itself, constitutes an interference.¹⁹ As a corollary, there has been a broad scope given to the meaning of “victim”, including corporate bodies.

One question that is connected to speech on social media is how we treat “bots”²⁰ or automated speech. If the ECtHR has accepted that rights are not

limited to human beings, how do we distinguish between, on the one hand, companies and, on the other, bots and other automated techniques?²¹ To suggest that legal personality is key merely rephrases the original question. Historically, software may have been seen as a form of expression, linked to a human's creativity. What, however, if the bot's actions are not under human direction – as in the case of a machine learning chatbot?²² For the time being, it may be unnecessary to address this question, and we can treat the bot as a tool used for communication and assume that the rights at issue are those of the person deploying the bot. This is similar to the treatment of an app for sharing a photo of a voting slip – though there, the right was that of the provider of the app, not the user.²³

3. Obligations on non-state actors

The ECHR addresses interference arising from the actions of state parties.²⁴ Most social media platforms are operated by private actors, however. The actions of a private actor can be imputed to the state, though there is no clear line of jurisprudence identifying when the state exerts sufficient control over a private actor for this imputation to be made. This point is important, given the reliance on so-called voluntary or self-regulatory measures to fulfil policy goals. It seems self-evident that, when a state requires the platforms do something (e.g. use a particular technology) or delegates specific responsibility to a private actor, state responsibility would be engaged.²⁵ Beyond this, the reasoning of the ECtHR in *Tierfabriken* is instructive – at least in relation to content moderation decisions. The case concerned the decision, by a private company, not to broadcast an advertisement, basing its decision on the state prohibition of political advertising. The ECtHR held that “[d]omestic law . . . therefore made lawful the treatment of which the applicant complained”.²⁶ This suggests that any of the platform's choices that reflect domestic legal provisions have an impact on users' ability to say what they want and would trigger Article 10 ECHR directly.²⁷ This case also suggests that the model of using private actors as gatekeepers to further governmental policy, which we see being introduced via regulation of social media, is not novel to the social media context.

Where positive obligations arise,²⁸ the ECtHR has often assessed restrictions taking into account a “fair balance” between the individual claiming the right and the rights of others and the community, subject to the margin of appreciation enjoyed by the state.²⁹ Relevant factors are: the expression at stake; its capability to contribute to public debate; the nature and scope of restrictions; the availability of alternative venues; and the weight of counter-vailing rights of others or the public.³⁰ How social media platforms would be assessed is uncertain; there is not just one platform and they have different features. Moreover, it is unclear the amount of speech or its nature that is relevant to public debate – or whether it is the space for public debate that is important. Cases identifying the value of the Internet have variously identified all three, but also ascribed those aspects to particular platforms.³¹ It may depend

on the platform's size, though exact matching of reach would be unlikely to be required to show that there was a viable alternative platform. The arguments are different if a user seeks particular types of information – provided that information is not obtainable elsewhere.³² Issues become more complex when a platform claims the benefit of speech rights against its users. For example, should a social media site run by a religious organisation be entitled to prohibit speech contrary to the relevant religion? In the *Pussy Riot* case, the ECtHR accepted that, even in a quasi-public venue, people seeking to access those venues could be expected to follow rules of behaviour there, or face penalties.³³ More generally, newspaper editors do not have to publish reader letters. Since *Autronic*,³⁴ the ECtHR has held those who are part of the chain of transmission can benefit from freedom of expression. In that instance, the satellite company had chosen which channel to broadcast, exercising at a very blunt level some form of choice over content. The ECtHR has not directly faced the question of whether a company which has no role in the choice of content also can claim Article 10 ECHR rights, independently of those of the speaker. For example, a traditional telephone operator provides the mechanism across which people may communicate, but it exercises no influence over the content. Does the operator “speak” by providing the network, irrespective of any actual use of that network? If a state were to impose conditions on the provision of that network – for example whether encryption technologies are permitted³⁵ – would that constitute an interference with the rights of the operator? It seems likely that this is the position.³⁶ There is, however, a tension here with this approach and net neutrality, which requires carriers not to distinguish between items of content transmitted. Of course, while platforms may benefit from Article 10 ECHR, they “are vicariously subject to the ‘duties and responsibilities’ which authors take on when they disseminate their opinions to the public”³⁷ and their rights can be limited according to the conditions of Article 10(2) ECHR – requiring action by the state to hold the balance between platform and user.

This brings us to intermediary immunity, introduced to EU Member States by the e-Commerce Directive³⁸ but now accepted as part of desirable operating conditions for platforms.³⁹ Does removal of that immunity constitute a violation of Article 10 ECHR; what are a platform's duties and responsibilities? The leading case is *Delfi*,⁴⁰ which concerned a news portal and its liability for the comments of its users posted below the news story. Underpinning the case was a dispute as to how *Delfi*'s role should be understood: as publisher of the defamatory content or as an intermediary imparting third-party content. The Grand Chamber accepted that actors who had different roles in the creation and dissemination of content should be subject to differentiated and graduated responsibilities, already set out in a Council of Europe recommendation.⁴¹ Here, the ECtHR distinguished between a “professionally managed” news portal, run on “a commercial basis” and which encouraged its users to respond to the news articles it published (factors which were also relevant to the proportionality analysis) and a social media platform “where the

platform provider does not offer any content and where the content provider may be a private person running the website or blog as a hobby”,⁴² though this description seems not to fit well with the large social media platforms which effectively push content at users through automated systems (e.g. autoplay default on). Central to its finding in this case was that the news portal was not a neutral intermediary (given the level of control over the comments and the fact that comments responded to the portal’s own news stories) and that it operated the site for gain. It found there was no fault with the national court’s characterisation of the site as a publisher (which could not claim the benefit of immunity under the e-Commerce Directive). The ECtHR also noted that “the impugned comments . . . mainly constituted hate speech and speech that directly advocated acts of violence”;⁴³ there was no dispute as to their illegality.

Delfi has been followed by several cases, but even taking into account the fact-specific nature of the assessment, it seems that there has been a shift in emphasis in the jurisprudence. *MTE*, a chamber judgment, found a violation of Article 10 ECHR in relation to a news portal which had been held liable for users’ comments, applying *Delfi*. The facts were different, arguably justifying the different conclusion.⁴⁴ As in *Delfi*, the site maintained a notice and take-down regime, but the comments complained of were “devoid of [their] pivotal elements of hate speech and incitement of violence”. Moreover, the applicants included a non-profit actor. In *Phil*,⁴⁵ concerning positive obligations under Article 8 ECHR, the relevant remarks were found in an anonymous comment to a blog posted by a not-for-profit association; the blog did not moderate comments. The ECtHR identified four factors to assess the appropriate balance between Articles 8 and 10 ECHR, developing from *Delfi*: the context of the comments; the measures the intermediary applied to prevent or remove defamatory comments; the liability of the authors (as opposed to the platform⁴⁶); and – in line with *MTE* – any consequences for the platform. *Phil* seems to narrow the criteria from *Delfi* slightly; nonetheless, these four factors now appear to be the starting point for analysis. The ECtHR found no violation of Article 8 ECHR. Notably, the comments were (comparatively) mild, were not connected with the topic of the article, and they were removed the day after Mr Phil complained with an apology posted.

The starting point in *Delfi* was the graduation of responsibility for different actors. Linked to this is the distinction between publisher and intermediary, or that between knowledge of content and innocent distribution (which also informs the immunity provisions in the e-Commerce Directive).⁴⁷ We might question whether this distinction implies that the graduation of responsibility is similarly binary, or whether there is greater nuance in the attribution of responsibility. Given the lack of attention to this question in media cases, in which the position of editor and publisher as speakers was assumed, it is unlikely that that jurisprudence will be particularly helpful in developing a more nuanced model. Another issue is whether there is a distinction between active and passive intermediaries in terms of what is expected of them. While the ECtHR has emphasised the value of the Internet itself as a forum for

discussion, suggesting that there should be no distinction, it has tended to do so in the context of sites operated by media organisations.⁴⁸ Might there be a distinction between such sites and at least some social media platforms? In the subsequent *Magyar Jeti*, which concerned liability for a hyperlink, the ECtHR noted that:

[a]lthough Internet news portals are not publishers of third-party comments in the traditional sense, they can assume responsibility under certain circumstances for user-generated content.⁴⁹

While the question of whether an intermediary is active or neutral might depend to some extent on the control and organisation functions of the platform,⁵⁰ including its moderation practices (as recognised in *Delfi*), both *Delfi* and *MTE* had an agenda-setting role for the user comments. This agenda-setting function might distinguish these sorts of platforms from other intermediaries. This is important: linking moderation and take-down regimes to an increased likelihood of being categorised as a publisher could disincentivise platforms from providing these safeguards. Support for this interpretation might be found in *Høiness*,⁵¹ which concerned the posting by anonymous users of gossip on a newspaper-operated forum (rather than a comments section after an article). The action was brought by the subject of the comment under Article 8 ECHR because national law had not provided a remedy; the ECtHR found no violation. Although the site was run by a professional news organisation, the ECtHR recognised that the debate forums were not particularly integrated in the presentation of news and thus could not be taken to be a continuation of the editorial articles.⁵² Arguably, this case then did not concern an “active” intermediary. However, *Høiness* is not clear-cut; the content in issue was not hate speech and this could also have influenced the ECtHR’s reasoning.

Despite the boundary between active and passive, the nature of the content is increasingly a key consideration. In *MTE*, concerning defamation, the ECtHR contrasted the comments there with the “clearly unlawful” nature of the speech in *Delfi*. In *Høiness* and in *Phil*, the ECtHR noted that the comments did not constitute hate speech, suggesting not only that content remains important but that, in this, the ECtHR is taking a binary approach to the classification of content (hate speech versus everything else). It suggests that platforms will be required to do more (or do it faster) when hate speech is in issue than other claims. On one level, this seems proportionate: speech bad enough to be criminalised is likely worse than those triggering other cases and therefore justifies a requirement of greater action by a platform. It is uncertain, however, whether the approach to hate speech applies to all criminal content. Further, should all civil actions automatically be treated at the same lower level of intensity by the ECtHR? Moreover, the focus on content is unfortunate from the perspective of platforms. They cannot predict what sorts of content will be posted by third parties and so would need to prepare for hateful speech,

which might lead to concerns about general monitoring with its implications for privacy, as well as concerns about the chilling effect.⁵³ Indeed, the ECtHR itself recognised this problem in *Phil*.⁵⁴ Surely, questions about the appropriate response should come after a determination of the level of responsibility a platform has.

It is unclear the extent to which the ECtHR envisages the same standards applying to all types and sizes of platforms, despite the distinction it made in *Delfi*. It has recognised that the chilling effect of potential liability for third-party content in comments sections could be particularly problematic for a non-commercial website.⁵⁵ Any service making money out of hosting would seem to be open to higher standards than other platforms. The focus on commercial motivation is different from the approach taken in relation to journalism (itself usually profit-motivated) where the emphasis is on the societal function of journalism. Moreover, the extent to which platform size plays a role in that assessment is uncertain; is the importance of size to do with the resources of platform or the size of the likely audience?

In *Sanchez*,⁵⁶ a politician did not delete unlawful third-party comments on the public wall of his Facebook account over six weeks and was convicted of incitement to hatred. This might have been an opportunity for the ECtHR to take a more graduated approach to liability. While the ECtHR noted that there was a shared responsibility between the social media platform and the user, Sanchez's choice to make his account public entailed obligations.⁵⁷ It also distinguished between the situation where liability arose directly from Sanchez's own expression and when it arose from his failure to act, implying that it would be easier to justify an interference in the latter over the former.⁵⁸ Dissenting Judge Mouru-Vikström highlighted that the ECtHR here had taken a different approach from *Delfi*, in which the Grand Chamber distinguished between large and professional sites and social media and sites administered by individuals as a hobby, but not explained why. This case has now been referred to the Grand Chamber. Questions about shared responsibility may also be difficult in decentralised systems, where content from one instance flows across to others in the system.

A further difficult issue relates to whether it is reasonable for a victim to sue the platform or the person posting the problematic content,⁵⁹ and anonymity is a factor in this. While the ECtHR weights this as just one factor, the underlying assumption is that it is harder for a user to challenge anonymous comments than when the speaker is identified. This suggests that, where platforms allow anonymity, they put themselves (more) in line for litigation, though they will not always lose.⁶⁰ In *KU*, national rules forbade the disclosure of user details by the communications provider so as to support freedom of expression and the right to anonymous expression. This meant that the perpetrator of a criminal offence could not be prosecuted. Even though damages could be obtained from the Internet service provider, according to the ECtHR, the state had failed in its positive obligations under Article 8 ECHR.⁶¹ *KU*, however, concerned an extreme case. An unknown author placed an advert on

an Internet dating site in the name of a minor, exposing him to paedophiles and constituted a grave form of interference with an essential aspect of private life.⁶² *KU* does not require that states ban anonymity, but identifies cases in which the state cannot require confidentiality. Nonetheless, there are questions about the impact on anonymous speech, especially in relation to journalism.⁶³

4. The impact of journalism ethics

The ECtHR has drawn on its approach towards the traditional media as a form of fourth estate,⁶⁴ but recognises that the traditional approach to editorial control (where editors control content and take responsibility for it) may need refining, especially where user-generated content⁶⁵ is in issue.⁶⁶ As noted, the role of editors and even publishers has not been critically analysed, nor their role as gatekeepers as well as speakers much acknowledged. The special position of journalists is subject to the expectation that they operate in good faith and in accordance with the tenets of responsible journalism.⁶⁷ Journalists should not be held liable for the comments of others revealed, for example, in interviews. The ECtHR noted this in relation to a news portal in *MTE*,⁶⁸ but this has not been applied to platforms more generally.⁶⁹ Where (well-known) professional journalists contribute to online discussions, the limits of permissible criticism are broad.⁷⁰ The ECtHR has recognised that citizen journalists, including bloggers, can fulfil the public watchdog role;⁷¹ whether this recognition depends on the blogger's acceptance of journalistic codes of practice or whether it relates to the speaker's actual practice has not yet been determined.⁷²

The ECtHR has also recognised that the responsibilities of the journalist may vary depending on the context – that, for example audio-visual media have a much more immediate and powerful effect than the print media.⁷³ Do social media services that deliver audio-visual content, have a similar such effect? This the ECtHR, albeit in a decade old judgment, rejected:

“the choices inherent in the use of the Internet and social media mean that the information emerging therefrom does not have the same synchronicity or impact as broadcasted information”.⁷⁴

Given the increase in the number of people accessing the news via social media, in live streaming, and the rise of the influencer, this position may change, if it has not already done so. The ECtHR has also suggested that with the increased range and quality of information available to individuals, “monitoring compliance with journalistic ethics takes on added importance”.⁷⁵ This boundary between ethical journalism and other content is potentially difficult to define, especially when journalists may increasingly be freelance⁷⁶ and news reporting crowd-sourced or even automated.

Freedom of expression is important but not more so than any other right. When balancing Article 10 ECHR with the Article 8 rights of the subject

of the story in cases involving the media, the ECtHR has developed a list of relevant considerations that reflect the public interest in journalism but has repeatedly emphasised the journalists' responsibilities (and the ethical framework surrounding their work).⁷⁷ Nonetheless, states, when faced with competing fundamental rights, will have a wide margin of appreciation.⁷⁸ In analysing this balance for speech online, the ECtHR has determined that the risk of harm arising from speech on the Internet is higher than that posed by traditional media,⁷⁹ although the ECtHR has not really analysed the mechanics of this impact beyond noting the speed at and extent to which information can spread⁸⁰ and the fact that content remains available somewhere on the Internet, seemingly indefinitely.

Social media accounts are, moreover, used by some people as a storage facility. While their own accounts are within their control, this is not so in respect of information on other people's accounts. The so-called right to be forgotten is important in giving some control back to data subjects, but in so doing potentially infringes the free speech rights of the person posting. This tension has not yet been raised before the ECtHR in the context of private individuals, but there is a developing line of cases in relation to legacy media. While the starting point – the factors identified by the ECtHR in *Axel Springer*⁸¹ (noted previously) – may be the same, the emphasis is different, especially in relation to search engines. Building on the reasoning of the CJEU in *Google Spain*,⁸² the ECtHR in *ML and WW* argued that, unlike primary publishers, search engine operators' primary interest is not in the publication of the information but in locating information about the subject of a search and building a profile on him/her.⁸³ Not only does the searchable quality of the Internet sites mean that privacy through obscurity or the elapsing of time is less possible, but the perishable nature of news which influences some of the ECtHR's decisions as regards reporting would no longer be a factor.⁸⁴ Two recent cases illustrate the change of emphasis, at least where private individuals (as opposed to public figures) are concerned and confirm that Article 8 ECHR may include a right to be forgotten even when the media as primary publisher are concerned.

In *Hurbain*, the ECtHR found that an order of a domestic court to a newspaper to anonymise on its online archive a 17-year-old story did not constitute an interference with the editor's freedom of expression.⁸⁵ The ECtHR underlined the length of time since the publication of the article and that the measures imposed did not require anonymisation of the original print article. It also emphasised, however, that this ruling should not be understood as requiring the media to check their archives in a systematic way and on an ongoing basis. While length of time appears significant in this case, it is not entirely clear how long a period of time would be required to bring this reasoning into play.⁸⁶ *Biancardi*,⁸⁷ which did not refer to *Hurbain*, concerned the fining of a newspaper editor for non-compliance with an order to de-list. The ECtHR, in finding no violation of Article 10 ECHR, again emphasised the fact that the delisting did not imply the erasure of the story.⁸⁸ It relied on factors central to *Hurbain*: the period for which the article remained online and the status of the subject

of the story as a private individual.⁸⁹ The fact that the ECtHR found no violation in *Biancardi*, where the article was kept online for three years after the reported events and the court proceedings were still ongoing, suggests that the period in which journalists' stories retain their newsworthiness sufficient to overturn the Article 8 rights of a private person is short. This finding is in contrast to *ML and WW*, in which the archives were older. The ECtHR characterised *ML and WW* as public figures, however. *Hurbain* has been referred to the Grand Chamber so the question may be revisited. Given that much social media content is likely to be about private actors and concerns information of no great public interest, it would seem likely that the balance would tip more clearly in favour of Article 8 ECHR, though whether this approach would be the same for take-down as well as de-indexing is uncertain. The archive aspect of the media on the Internet does not seem relevant to private persons on social media.

Another issue is the republication of material made publicly available through breach of confidence – this could be a particular problem with regard to social media (e.g. “revenge porn”). The ECtHR has recognised that the publication of such material undermines its confidentiality, but the subject’s right is not entirely depleted. In *Ovchinnikov*, the ECtHR held limitations were acceptable “to prevent further airing of the details of an individual’s private life which do not come within the scope of any political or public debate on a matter of general importance”.⁹⁰ The ECtHR has not yet had to consider stay down orders or mechanisms to prevent sharing of content (dynamic blocking⁹¹), which are now coming before the CJEU.⁹² Presumably, the same principles should apply so that, taking the example of revenge porn, the sensitivity of the material, plus the impact on the victim (e.g. not knowing who has seen it in combination with the virality of content on the Internet⁹³), the likely manner in which the information was obtained⁹⁴ and circumstances of initial disclosure – all of which come from existing jurisprudence – would tip the balance in favour of Article 8 ECHR, provided the other criteria (lawfulness and safeguards against arbitrary exercise of power, and the proportionality of any punishment) were satisfied. With stay-down orders, however, there is a risk of “general monitoring” with implications for the privacy of users. In its jurisprudence on surveillance, however, the ECtHR has stopped short of a total prohibition on mass surveillance.⁹⁵ It might be that, when an appropriate case comes before it, the ECtHR would develop a similar distinction to that evolving within the EU; that looking at everything is not permissible (general monitoring); but looking for something in everything is (specific monitoring).⁹⁶

5. Political speech, hate speech and the impact of social media

Political speech, especially the speech of politicians, is highly protected, whether online or off. It may nonetheless be legitimately restricted under Article 10(2) ECHR; for example, when it constitutes wanton denigration.⁹⁷ The ECtHR is concerned to protect public debate, so speech which does not

contribute to such debate or follow the rules of debate would not be protected to such a high degree.⁹⁸ In *Tierbefrier*, the ECtHR found no violation of Article 10 ECHR in relation to someone penalised for material obtained using covert filming mechanisms and which made assertions of fact that were not backed up by evidence.⁹⁹ The ECtHR noted the applicant had “disrespected the ‘rules of intellectual battle of ideas’”.¹⁰⁰ An emphasis on the need for speech to contribute to debate might weigh against much speech on some sites, either in terms of the topics discussed or the use of abusive language, pile-ons and the like.

Hate speech, a growing problem on social media, is unlikely to be highly protected by Article 10 ECHR. It may be necessary “to sanction or even prevent all forms of expression which spread, incite, promote or justify hatred based on intolerance”,¹⁰¹ subject to the test of proportionality. Even criminal law measures may be justified and the state enjoys a wider margin of appreciation when violence is threatened.¹⁰² Factors for assessing proportionality include whether the statements were made against a tense political or social background; whether they could be understood as a direct or indirect call for violence or as a justification for violence, hatred or intolerance, especially where they are sweeping attacks on entire ethnic, religious or other groups; the manner in which the statements were made; and their capacity to lead to harmful consequences.¹⁰³ Although freedom of expression is of the highest importance, tolerance and respect for the equal dignity of all human beings constitute the foundations of a democratic, pluralistic society. In this, the online case law follows the offline jurisprudence.¹⁰⁴ Diversity of opinion is not entirely content neutral, specifically as regards hate speech, and politicians in particular have obligations in this regard.¹⁰⁵ Moreover, some speech may even fall outside the protection of the ECHR altogether by virtue of Article 17 ECHR.¹⁰⁶ While some commentators¹⁰⁷ have been critical of this case law, any difficulties do not seem specifically related to the characteristics of social media, save to the extent that those platforms give a venue for this sort of speech and contribute to its prevalence.

Most of the cases have concerned circumstances in which the speaker has complained about a penalty imposed for hate speech; what, however, if the state fails to take action against hateful speech? Allowing hate speech to flourish unchecked may silence those in the minority groups on the receiving end.¹⁰⁸ This is also seen in the context of intimidation of or violence towards journalists and, in the online context, particularly women journalists. There is a consistent line of authority concerning states’ failure to investigate. In *Ismayilova*, covertly recorded video clips, including video of sexual activity, were uploaded on the Internet. The covert filming in her home, as well as the intimate aspects of Ismayilova’s life that were affected, triggered Article 8 ECHR; the failure of the state to investigate constituted a breach of its positive obligations.¹⁰⁹ It was also a violation of the state’s positive obligations under Article 10 ECHR.¹¹⁰ In *Volodina*, the applicant’s former boyfriend, as part of a campaign of harassment, shared private photographs on a social network.

Russia was similarly in breach of its obligations here, suggesting that states are under an obligation to take protective measures and to carry out effective investigations – this time under Article 3 ECHR (freedom from torture).¹¹¹ This is especially the case where online harassment forms part of a campaign of harassment and violence more generally.

Article 8 ECHR has also been deployed in these contexts to protect the rights of vulnerable groups.¹¹² The ECtHR has repeatedly held that states may be under an obligation to take action, even in the sphere of the relations of individuals between themselves.¹¹³ Article 8 ECHR is a broad right going beyond privacy and the protection of reputation.¹¹⁴ The ECtHR has recognised that the state is under an obligation to secure an individual's physical and psychological integrity.¹¹⁵ Effective deterrence against grave acts involving fundamental values and essential aspects of private life requires efficient criminal law provisions, especially where vulnerable individuals – including children¹¹⁶ – are concerned. Rape and sexual abuse implicate “essential aspects of private life”;¹¹⁷ this could be applied to online sexual misconduct (e.g. revenge porn). Any national laws introduced to satisfy the state's positive obligations must be adequately enforced. In *Beizaras and Levickas*,¹¹⁸ the decision by the prosecutor's office not to initiate criminal proceedings against homophobic posts on Facebook, which included calls for violence, constituted a violation of the state's obligations under Article 8 ECHR. Anti-minority demonstrations should be criminalised, affording effective protection against harassment, threats and verbal abuse, including those online.¹¹⁹ For less serious acts, the state's obligation to maintain and enforce an adequate legal framework could be satisfied by civil remedies or – presumably – a regulatory regime. State obligations have arisen in relation to the verbal harassment of a boy with disabilities¹²⁰ and the negative stereotyping of the Roma in state-sponsored schoolbooks.¹²¹ In principle, the failure to take action in relation to school bullying (and, by analogy, cyberbullying) falls within Article 8 ECHR, but there must be some basis on which state authorities should be aware of the risk.¹²² More generally, there must be a certain level of seriousness to trigger the application of Article 8 ECHR.¹²³ Many social media users express themselves in ways that might be regarded as offensive, but such “vulgar abuse” did not reach the threshold¹²⁴ in England and Wales to allow service out of the jurisdiction in a defamation claim, meaning the claim failed. This threshold did not constitute a violation of the state's positive obligations.¹²⁵ The ECtHR has suggested that the importance of the Internet (and, by implication, social media¹²⁶) will give a state a wide margin of appreciation.¹²⁷

6. Misinformation and disinformation

One distinctive aspect of social media has been the *proliferation*¹²⁸ of “fake news”: misinformation, disinformation and malinformation.¹²⁹ Freedom of expression does not automatically exclude lies and misleading statements from its ambit,¹³⁰ and the ECtHR has always emphasised that people cannot be

required to prove the truth of an opinion or value judgment.¹³¹ To the contrary, state limitations on such content would need to be carefully considered and comply with the requirements of Article 10(2) ECHR. The jurisprudence of the ECtHR is not, however, indifferent as to whether falsehoods and inaccurate information circulate; reliable information is the basis for criticism and for holding those in power to account.¹³² The ECtHR's jurisprudence on the media envisages an orientation towards truth-telling. In *Stoll*, the Grand Chamber emphasised the importance of "an accurate factual basis" to "provide 'reliable and precise' information".¹³³ Albeit in the specific context of a conflict with Article 8 ECHR, the ECtHR has referred to the obligations in Article 10(2) ECHR to suggest that "no one can be relieved of responsibility for accusations without any factual basis".¹³⁴ The extent to which this principle could apply more generally may receive judicial attention. In *Avagyan*,¹³⁵ the claimant posted on Instagram saying that there had been no real cases of COVID-19 in her region. She was convicted of spreading untrue information and fined 30,000 roubles. The case has been communicated. It perhaps should be understood against the pandemic which has given rise to "an infodemic",¹³⁶ with potentially serious consequences.¹³⁷ Minimising the health impacts may be a legitimate aim in itself. Additionally, states may be under positive obligations to protect health¹³⁸ or to ensure that relevant information is available, even if there is scientific uncertainty about the precise nature and extent of these risks.¹³⁹ This does not, however, necessarily justify criminalising speech.

Specific issues arise from the way many platforms select and promote information (and also people to follow and groups to join): they seem designed to highlight content that elicits strong reactions from users.¹⁴⁰ They do not necessarily promote informed sources. It is also more difficult to rely on the flow of information to counter untruths when information flows are personalised.¹⁴¹ The Council of Europe has recognised the potential of AI-driven tools (including tools that promote or moderate content) "to identify individual vulnerabilities and exploit accurate predictive knowledge, and to reconfigure social environments in order to meet specific goals and vested interests".¹⁴² Arguably, states could impose content-neutral obligations on platforms (e.g. requiring them to allow users to curate their own feeds or to promote authoritative sources; or controls over how targeted advertising systems are used). The EU Code on Disinformation, which identifies good practice in dealing with disinformation beyond just removal of content, includes such techniques, as does the Digital Services Act in the EU.¹⁴³ Insofar as content remains available even if its audience is curtailed, following the logic in *Hurbain* and *Biancardi*, this is a less intrusive measure than take-down, giving some support to the aphorism that freedom of speech does not mean freedom of reach.¹⁴⁴

While an interference with a user's right to receive inaccurate information could be subjected to a standard analysis under Article 10 ECHR, the question of whether states are under a positive obligation (beyond the specific contexts already noted) to ensure reliable information is much less clear-cut.

This question has not received much attention. The ECtHR seems to envisage a right of the public to be adequately informed,¹⁴⁵ suggesting that the right to receive is not limited to the right to obtain specific pieces of information.¹⁴⁶ Beyond this, it is unclear what the right to be adequately informed looks like. In the context of a Moldovan case on public service broadcasting, the ECtHR reiterated that the state is the ultimate guarantor of pluralism, ensuring access to “impartial and accurate information and a range of opinion and comment”.¹⁴⁷ This principle applies whether or not the actors subject to those obligations are private or public actors and, presumably, could extend beyond the broadcasting sector. Certainly, the need “to optimise the quality and reliability of information on the Internet” has been recognised.¹⁴⁸ This, however, is a long way from saying that there is a positive obligation on the states: Moldova already had chosen to provide state broadcasting and the ECtHR’s comments operated as a counter to one-sided political reporting. Nonetheless, there remains a recognition of the importance of accuracy, as well as diversity.

7. Proportionality, blocking orders and other responses

State responses to problems must be proportionate. This principle raises distinctive aspects as regards the Internet. A key issue has been that of blocking, particularly when a large social media platform is blocked on the basis of some problematic content. This leads to “collateral censorship”¹⁴⁹ of all other users of the platform. This is not to say that a state can never resort to blocking measures, but that any such order must carefully weigh up all the options available. Any system that allows for blocking orders must provide safeguards against abuse.¹⁵⁰ Orders can be targeted at individual posts. *GRA Stiftung gegen Rassismus und Antisemitismus* concerned a fine and take-down order following a successful defamation action. This, the ECtHR found to be disproportionate, constituting a chilling effect on speech.¹⁵¹ The implications for take-down orders are uncertain. In its judgment, the ECtHR referred to the earlier case of *Lewandowska-Malec* as authority – a case which makes clear that it was the cumulative effect of a criminal conviction and the aggregation of the penalties that were crucial.¹⁵² It seems unlikely that take down orders would never be permissible; imagine the case of child sexual abuse with the state not permitted to stop the ongoing commission of that crime. It also seems unlikely that take-down orders and fines (or even imprisonment) could never be used in conjunction. That would mean that the state would have to choose between stopping the ongoing commission of the offence or punishing the offender. Again, the point is likely to be fact-sensitive, and it is notable that both *Stiftung gegen Rassismus* and *Lewandowska-Malec* concern defamation actions against public interest actors¹⁵³ and are thus cases when Article 10 ECHR concerns are likely to weigh heavily. They may provide little guidance for when serious crimes are in issue. On social media platforms, it may be that there are other options short of take-down of content that can better balance

the interests when non-criminal speech is in issue.¹⁵⁴ The UN Special Rapporteur suggested that it:

may be appropriate to use measures such as downranking, demonetizing, friction, warnings, geoblocking and countermessaging, and the criteria for application of these measures should also be transparently disclosed to allow users to govern their behaviour accordingly and understand when these measures have been applied.¹⁵⁵

8. Conclusion

This chapter asked whether the existing ECHR jurisprudence could be applied straightforwardly to cases involving social media. In some regards, the answer is “yes”; the ECtHR has relied heavily on its own jurisprudence, rarely engaging with the decisions of other courts. Particularly in cases where the domestic challenge involves the user, long-standing principles about the importance of freedom of speech, concerns around hate speech and the approach to balance with Article 8 ECHR are applied. As with the offline world, the application in a given case will be fact-sensitive, a point that has arisen again and again. In the cases to date, the ECtHR has highlighted two Internet-specific issues: virality (especially when considered Article 8 ECHR) and the democratic potential of the Internet. This latter aspect raises the question of the extent to which those on social media should be treated as akin to journalists, a question for which it seems difficult to identify clear principles for determining the answer. Moreover, there is a linked issue about the extent to which the provision of social media spaces in itself serves a democracy-enhancing function, as a forum for debate and as an archive, given problems around – for example – hate speech and misinformation. Misinformation – an area in which take-down would be unlikely to be proportionate – points to the need to develop new approaches to the management of information that would be more likely to survive an Article 10(2) analysis. If the value of social media is found in the provision of a forum and, to some extent, divorced from the nature of the content carried, the approach to intermediary liability – which, rather than developing a graduated function-based approach to responsibility, seems now to rely heavily on the nature of the content – may need revisiting, especially if decentralised systems become more prevalent. Certainly, the role of platforms (and the impact of the surveillance capitalism model) has not yet been fully analysed and the question of whether social media platforms are themselves speakers, even functioning as editors or publishers, not yet clearly answered. Other issues have not yet been specifically addressed, perhaps the most sensitive of which is the freedom of the platforms to moderate content, though the approaches either to broadcasting regulation or to media editors may still prove useful models at least in part. In this, we might say that the case law surrounding social media intensifies some of the debates already existing around enforcement of rights offline, especially the difficulty of balancing conflicting rights and positive obligations in highly dynamic environments.

Notes

- 1 *Cengiz and Ors v Turkey* App nos 48226/10 and 14027/11 (ECtHR, 1 December 2015), para 49.
- 2 Barrie Sander, 'Democratic Disruption in the Age of Social Media: Between Marketized and Structural Conceptions of Human Rights Law' (2021) 32(1) *European Journal of International Law* 159, 164–166.
- 3 Wolfgang Benedek and Matthias C Ketterman *Freedom of Expression and the Internet* (2nd ed) (Council of Europe 2019) 25. A discussion of the likely impact of Web3 lies outside the scope of this contribution.
- 4 Increasingly, some users operate across multiple platforms; this does not affect the fact that there are individual platforms which should be considered separately; to a large extent, this may be true of decentralised platforms because the software, which provides the communications framework, constitutes a common theme across instances.
- 5 Shoshana Zuboff, *The Age of Surveillance Capitalism: The Fight for a Human Future at the New Frontier of Power* (Profile Books 2019) – while there have been some critiques of Zuboff's work the description of the business model remains powerful. See also Jaron Lanier, *Ten Arguments for Deleting Your Social Media Accounts Right Now* (Henry Holt and Co 2018).
- 6 Zuboff (n 5).
- 7 Frank Pasquale 'Platform Neutrality: Enhancing Freedom of Expression in Spheres of Private Power' (2016) 17(2) *Theoretical Inquiries in Law* 487–513.
- 8 *Delfi AS v Estonia* App no 64569/09 (ECtHR, Grand Chamber, 16 June 2015), para 131.
- 9 *Neij and Sunde Kolmisoppi (The Pirate Bay) v Sweden*, App no 40397/12 (ECtHR, 19 February 2013).
- 10 Lorna Woods, 'Social Media: It Is Not Just About Article 10', in David Mangan and Lorna E Gillies (eds), *The Legal Challenges of Social Media* (Edward Elgar 2017).
- 11 E.g. *Handyside v UK*, Series A No. 24, (ECtHR, 7 December 1976); *Fressoz and Roire v France* App no 29183/95 (ECtHR, Grand Chamber, 21 January 1999), para 45; *Perna v Italy* App no 48898/99, (ECtHR 6 May 2003), para 39.
- 12 *Delfi* (n 8), para 110.
- 13 Recognised also by the Advocate General in Case C-18/18 *Glawischnig-Piesczek v Facebook Ireland* [2019] ECLI:EU:C:2019:458, para 65; the Court was silent on freedom of expression, [2019] ECLI:EU:C:2019:821.
- 14 See e.g. *Üçdağ v Turkey* App no 23314/19 (ECtHR, 31 August 2021).
- 15 *Gough v UK* App no 49327/11 (ECtHR, 28 October 2014).
- 16 *Vajnai v Hungary* App no 33629/06 (ECtHR, 8 July 2008); *Donaldson v UK* App no. 56975/09 (ECtHR, 25 January 2011).
- 17 *Melike v Turkey* App no 35786/19 (ECtHR, 15 June 2021).
- 18 *Kilin v Russia* App no 10271/12 (ECtHR, 11 May 2021).
- 19 *Autronic AG v Switzerland* Series A no. 178 (ECtHR, 22 May 1990), para 47.
- 20 A bot – short for robot – is a software program that performs automated, repetitive, pre-defined tasks; these tasks are typically simple and carried out at a much higher rate than human activity. Bots are not limited to text-based, but can include chatbots (and include virtual assistants – e.g. Siri and Cortana). Bots are not necessarily "good" or "bad"; that depends on their function ranging from indexing a search engine to carrying out DDoS attacks. Bots which operate on social media platforms can be used to automatically generate messages, act as a follower of users and to create fake accounts.
- 21 Some countries' company law could accept autonomous systems as legal persons, but not all: e.g. Shawn Bayern *et al.*, 'Company Law and Autonomous Systems: A Blueprint for Lawyers, Entrepreneurs, and Regulators' (2017) 9 *Hastings Science and Technology Law Journal* 135.

- 22 E.g. European Parliament Resolution, Recommendations to the Commission on Civil Law Rules on Robotics, 16 February 2017 (A8–0005/2017); Simon Ches-terman, ‘Artificial Intelligence and the Limits of Legal Personality’ (2020) 69 *International and Comparative Law Quarterly* 819; Paulius Cerka *et al.*, ‘Is It Possible to Grant Legal Personality to Artificial Intelligence Software Systems?’ (2017) 33 *Computer Law and Security Review* 685; cf Migle Laukyte, ‘AI as a Legal Person’ (2019) ICAIL ‘19: *Proceedings of the Seventeenth International Conference on Artificial Intelligence and Law* 209.
- 23 *Magyar Kétfarkú Kutya Párt v Hungary* App no 201/17 (ECtHR, Grand Cham-ber, 20 January 2020).
- 24 Eg *Norman v UK* App no 41387/17 (ECtHR, 6 July 2021), paras 76–77.
- 25 Eg *Vukota-Bojic v Switzerland* App no. 61838/10 (ECtHR, 18 October 2016) para 47. See discussion: Lorna Woods, *The Carnegie Statutory Duty of Care and Fun-damental Freedoms*, December 2019 <https://dlssu070pg2v9i.cloudfront.net/pex/pex_carnegie2021/2019/12/05125454/The-Carnegie-Statutory-Duty-of-Care-and-Fundamental-Freedoms.pdf> accessed 17 January 2022.
- 26 *VgT Verein gegen Tierfabriken v Switzerland* App no 24699/94, (ECtHR, 28 June 2001), para 47.
- 27 Cf reasoning of Advocate General in Case C-401/19 *Poland v Council and Parlia-ment* (CJEU, Opinion, 15 July 2021).
- 28 See e.g. *Mouvement Raëlien Suisse v Switzerland* App no 16354/06 (ECtHR, Grand Chamber, 13 July 2012), para 62; *Tierfabriken* (n 26), para 46; see also Judge Pinto de Albuquerque’s dissenting opinion in *Barbulescu v Romania* App no 61496/08 (ECtHR, 12 January 2016) para 23.
- 29 *Appleby v UK* App no 44306/98 (ECtHR, 6 May 2003); *Iltalehti and Karhuvaara v Finland* App no 6372/06 (ECtHR, 6 April 2010) para 42.
- 30 *Appleby* (n 29), paras 42–43 and 47–49.
- 31 *Cengiz* (n 1) paras 49–52.
- 32 *Kalda v Estonia* App no 64569/09 (ECtHR, 19 January 2016); *Ramazan Demir v Turkey* App no 68550/17 (ECtHR, 9 February 2021); *Jankovsis v Lithuania* App no 21575/08 (ECtHR, 17 January 2017); *Mehmet Reşit Arslan and Orhan Bingöl* App no 47121/06 (ECtHR, 18 June 2019); *Akdeniz v Turkey* App no 20877/10 (ECtHR, 11 February 2014).
- 33 *Alekshina v Russia* App no 38004/12 (ECtHR, 17 July 2018), though a violation was found in this case because of the disproportionate nature of the penalties.
- 34 *Autronic* (n 19).
- 35 *Telegram Messenger v Russia* App no 13232/18, pending, concerned a request for information from the Federal Security Service to facilitate the breaking of Tel-egram’s encryption. Telegram refused to cooperate and was fined. Telegram has brought a case before the ECtHR arguing that this constitutes an infringement of its right to impart information.
- 36 *Pirate Bay* (n 9); *Cengiz* (n 1), para 53; *Magyar Tartalomszolgáltatók Egyesülete and Index.hu Zrt (MTE) v Hungary* App no 22947/13 (ECtHR, 2 February 2016), paras 60–61, *Magyar Kétfarkú Kutya Párt* (n 23).
- 37 *Sürek v Turkey (no. 1)* App no 26682/95 (ECtHR, Grand Chamber, 8 July 1999), para 63.
- 38 Directive 2000/31/EC on certain legal aspects of information society services [2000] OJ L 178/1. Regulation 2022/2065 The Digital Services Act [2022] OJ L277/1 maintains the conditional immunity approach.
- 39 Declaration on Freedom of Communication on the Internet, 28 May 2003; Rec-ommendation CM/Rec(2011)7 of the Committee of Ministers to member states on a new notion of media (adopted on 21 September 2011). Post-*Delfi*, there is Recommendation CM/Rec(2018)2 on the roles and responsibilities of internet intermediaries.

- 40 *Delfi* (n 8).
- 41 *Ibid*, para 113; CM/Rec(2011)7 (n 39).
- 42 *Delfi*, (n 8), para 116.
- 43 *Ibid*, para 117.
- 44 Robert Spano, 'Intermediary Liability for Online User Comments under the European Convention on Human Rights' (2017) 17 *Human Rights Law Review* 665; see also *MTE* (n 36).
- 45 *Phil v Sweden* App no 74742/14 (ECtHR, 7 February 2017).
- 46 Contrast *KU v Finland* App no 2872/02 (ECtHR, 2 December 2008), discussed later (n 61).
- 47 This point was noted in *Tamiz v UK* App no 3877/14 (ECtHR, 19 September 2017), para 84.
- 48 *MTE* (n 36); *Standard Verlagsgesellschaft mbH v Austria* (no. 3) App no 39378/15 (ECtHR, 7 December 2021).
- 49 *Magyar Jeti ZRT v Hungary* App no 11257/16 (ECtHR, 4 December 2018), para 66.
- 50 Contrast *Tamiz* (n 47) which might be seen as providing a more technical service.
- 51 *Høiness v Norway* App no 43624/14 (ECtHR, 19 March 2019).
- 52 *Høiness* (n 51), para 71; the ECtHR also highlighted the unforeseen nature of the comments in *Phil* (n 45).
- 53 *Sander* (n 2) 171.
- 54 *Phil* (n 45), para 31.
- 55 *Ibid*.
- 56 *Sanchez v France* App no 45581/15 (ECtHR, 2 September 2021).
- 57 *Ibid*, para 100.
- 58 Note the reasoning of the ECtHR in *Delfi* (n 8) on this point, para 153; in their joint concurring opinion, Judges Raimondi, Karakaş, De Gaetano and Kjølbro noted the significance of this point to the outcome, para 5. Cf dissenting opinion Judges Sajó and Tsotsoria, para 34.
- 59 *Delfi*, (n 8), para 147.
- 60 See e.g. *Phil* (45).
- 61 *KU* (n 46), paras 47–48. Note the ECtHR referred to the Data Retention Directive (Directive 2006/24/EC) although that directive was subsequently annulled by the European Court of Justice for inadequate safeguards for privacy rights: Joined Cases C-293/12 and C-594/12 *Digital Rights Ireland v Minister for Communications, Marine and Natural Resources, Minister for Justice, Equality and Law Reform, Commissioner of the Garda Síochána, Ireland, The Attorney General and Kärntner Landesregierung, Michael Seitlinger, Christof Tschohl and others*, (CJEU, 8 April 2014).
- 62 *KU* (n 46), para 46; this reasoning extends to other vulnerable individuals.
- 63 *Standard Verlag* (no 3) (n 48).
- 64 *Times Newspapers Ltd v the United Kingdom* (nos. 1 and 2) App nos 3002/03 and 23676/03 (ECtHR, 10 March 2009), para 27.
- 65 The meaning of user-generated content is discussed in Lorna Woods, 'User Generated Content: Freedom of Expression and the Role of the Media in a Digital Age', in Merris Amos, Jackie Harrison and Lorna Woods (eds), *Freedom of Expression and the Media* (Martinus Nijhoff Publishers 2012) 142–143.
- 66 *Delfi* (n 8), para 113.
- 67 *Observer and Guardian v UK*, Series A no. 216 (ECtHR, 26 November 1991); *Stoll v Switzerland* App no 69698/01 (ECtHR, Grand Chamber, 10 December 2007), para 104.
- 68 *MTE* (n 36).
- 69 Cf *Kilin* (n 18), where prosecution for sharing content without comment was not a violation of Article 10 ECHR.

- 70 *Niskasaari and Otavamedia Oy v Finland* App no 32297/10 (ECtHR, 23 June 2015), paras 9 and 54–59, in the context of an Internet discussion site; this implies that journalistic ethics apply to journalists here too.
- 71 *Cengiz* (n 1), para 52; *Falzon v Malta* App no 45791/13 (ECtHR, 20 March 2018), para 57.
- 72 See generally Ellen Hovlid, ‘Finding a Judicial Definition of Journalism: A Challenging Exercise in the Digital Age’, in Mart Susi (ed), *Human Rights, Digital Society and the Law: A Research Companion* (Taylor & Francis 2019); Joanna Kulesza, *International Internet Law* (Routledge 2012) 52.
- 73 *Purcell v Ireland* App no 15404/89 (EComHR, 16 April 1991); *Jersild v Denmark* Series A no 298 (ECtHR, 23 September 1994), para 31, *Delfi* (n 8), para 134; a radio interview is also less impactful than a television interview – *Schweizerische Radio- und Fernsehgesellschaft SRG v Switzerland* App no 34124/06 (ECtHR, 21 June 2012), para 64.
- 74 *Animal Defenders International v UK* App no 48876/08 (ECtHR, Grand Chamber, 27 January 2011), para 119.
- 75 *Stoll* (n 67), para 104.
- 76 In *Arnarson v Iceland* App no 58781/13 (ECtHR 13 June 2017), the ECtHR applied the normal rules for journalists’ ethics to a freelance journalist (para 43).
- 77 *Ovchinnikov v Russia* App no 24061/04 (ECtHR, 16 December 2010), para 42.
- 78 *Axel Springer AG v Germany* App no 39954/08 (ECtHR, Grand Chamber, 7 February 2012); *Von Hannover v Germany* (no 2) App nos 40660/08 and 60641/08 (ECtHR, Grand Chamber, 7 February 2012).
- 79 *Delfi* (n 8), para 33; *Węgrzynowski and Smolczewski v Poland*, App no 33846/07 (ECtHR, 16 July 2013), para 98.
- 80 *Cicad v Switzerland* App no 17676/09 (ECtHR, 7 June 2016).
- 81 *Axel Springer* (n 78).
- 82 C-131/12 *Google Spain SL and Google Inc. v Agencia Española de Protección de Datos (AEPD) and Mario Costeja González* (CJEU, Grand Chamber 13 May 2014).
- 83 *ML and WW v Germany* App no 60798/10 and 65599/10 (ECtHR, 28 June 2018), para 97.
- 84 *Times Newspapers* (n 64), para 47.
- 85 *Hurbain v Belgium* App no 57292/16 (ECtHR, 22 June 21); cf *Węgrzynowski and Smolczewski* (n 79).
- 86 See e.g. *Éditions Plon v France* App no 58148/00 (ECtHR, 18 May 2004), para 53; *ML and WW* (n 83).
- 87 *Biancardi v Italy* App no 77419/16 (ECtHR, 25 November 2021).
- 88 *Biancardi*, (n 87), para 59.
- 89 *Ibid*, para 62.
- 90 *Ovchinnikov* (n 77), para 50.
- 91 Communication from the Commission to the European Parliament, the Council and the European Economic and Social Committee, Guidance on certain aspects of Directive 2004/48/EC of the European Parliament and of the Council on the enforcement of Intellectual Property Rights COM (2017) 708 final, p 21.
- 92 See e.g. *Glawischnig-Piesczek* (n 13), though it did not consider the impact of Article 11 EU Charter; Case C-401/19 *Poland v Parliament and Council* [2022] ECLI:EU:C:2022:297
- 93 *Cicad* (n 80), para 59.
- 94 *Societe editrice de Mediapait and Ors v France* App nos 281/15 and 34445/15 (ECtHR, 14 January 2021).
- 95 *Big Brother Watch v UK* App nos 58170/13, 62322/14 and 24960/15 (ECtHR, Grand Chamber, 25 May 2021); cf Joined Cases C-511/18 *La Quadrature du Net*, C-512/18 *French Data Network* and C-520/18 *Ordre des barreaux francophones et germanophone* [2020] ECLI:EU:C:2020:791.

- 96 Case C-401/19 *Poland v Parliament and Council* (n 92). See also chapter 2 in this volume.
- 97 *Savva Terentyev v Russia* App no 10692/09 (ECtHR, 28 August 2018); the domestic courts failed to take context into account when coming to its balance leading to the ECtHR finding a violation on that basis.
- 98 See e.g. *Kilin* (n 18); *ZB v France* App no 46883/15 (ECtHR, 2 September 2021).
- 99 *Tierbefreier v Germany* App no 45192/09 (ECtHR, 16 January 2014); on covert filming see also *Bremner v Turkey* App no 37428/06 (ECtHR, 13 October 2015) under Article 8 ECHR.
- 100 *Tierbefreier* (n 99) para 56.
- 101 *Erbakan v Turkey* App no 59405/00 (ECtHR, 6 July 2006), para 56.
- 102 *Perinçek v Switzerland* App no 27510/08 (ECtHR, Grand Chamber, 15 October 2015), paras 229–241; *Savva Terentyev v Russia* App no 10692/09 (ECtHR, 28 August 2018), para 65.
- 103 *Perinçek* (n 102), paras 204–208; *Willem v France* App no 10883/05 (ECtHR, 16 July 2009).
- 104 E.g. *Sanchez* (n 56); *Gündüz v Turkey* App no 35071/97 (ECtHR, 4 December 2003).
- 105 Council of Europe, Committee of Ministers Recommendation on hate speech R (97) 20 (30 October 1997).
- 106 E.g. *Belkacem v Belgium* App no 34367/14 (ECtHR, 27 June 2017); See generally Giovanni Bonello, ‘Freedom of Expression and Incitement to Violence’, in Joseph Casadevall *et al.* (eds), *Freedom of Expression: Essays in Honour of Nicolas Bratza* (Wolf Legal Publishing 2012).
- 107 Jacob Mchangama and Natalie Alkiviadou ‘Hate Speech and the European Court of Human Rights: Whatever Happened to the Right to Offend, Shock or Disturb?’ (2021) 21(4) *Human Rights Law Review* 1008; Philippe Yves Kuhn, ‘Reforming the Approach to Racial and Religious Hate Speech under Article 10 of the European Convention on Human Rights’ (2019) 19 *Human Rights Law Review* 119.
- 108 The UN Special Rapporteur on Freedom of Expression has recently noted what she calls “gendered censorship” in her Report on Promotion and protection of the right to freedom of opinion and expression (A/76/258) 30 July 2021, <<https://undocs.org/A/76/258>> accessed 4 January 2022, para 12.
- 109 *Ismayilova v Azerbaijan* App nos 65286/13 and 57270/14 (ECtHR, 10 January 2019).
- 110 *Ismayilova* (n 109), paras 158–159.
- 111 *Volodina v Russia* App no 41261/17 (ECtHR, 9 July 2019).
- 112 *Behar v Bulgaria* App no 29335/13 (ECtHR, 16 February 2021).
- 113 E.g. *Evans v United Kingdom* App no 6330/05 (ECtHR, Grand Chamber, 10 April 2007), para 75.
- 114 *Tysiāc v Poland* App no 5410/03 (ECtHR 20 March 2007); *Botta v Italy* App no 21439/93 (ECtHR, 24 February 1998).
- 115 *Glass v UK* App no 61827/00 (ECtHR, 9 March 2004) paras 74–83; *KU* (n 46), para 43.
- 116 *KU* (n 46), paras 45–49.
- 117 *MC v Bulgaria* App no 39272/98 (ECtHR, 4 December 2003).
- 118 *Beizaras and Levickas v Lithuania* Appl no 42188/15 (ECtHR, 14 January 2020).
- 119 *Király and Dömötör v Hungary* App no 10851/13 (ECtHR, 17 April 2017), para 80.
- 120 *Đorđević v Croatia* App no 41526/10 (ECtHR, 24 July 2012), paras 87–88.
- 121 *Aksu v Turkey* App nos 4149/04 and 41029/04 (ECtHR, Grand Chamber, 22 March 2012); on the facts Aksu lost but the principle was recognised.
- 122 *Đorđević v Croatia* (n 120).

- 123 *Medžlis Islamske Zajednice Brčko and Others v Bosnia and Herzegovina* App no 17224/11 (ECtHR, Grand Chamber, 27 June 2017), para 76.
- 124 The threshold related to service out of the jurisdiction which requires that there be a “real and substantial tort” as set down in *Dow Jones & Co Inc v Jameel* [2005] EWCA Civ 75.
- 125 *Tamiz* (n 47).
- 126 Note the potential relevance of failure to action arguments in *Sanchez* (n 56).
- 127 *Tamiz* (n 47) para 90; in *Mosley v UK* App no 48009/08 (ECtHR, 10 May 2011) the ECtHR identified factors for deciding on the breadth a state’s margin of appreciation, and in cases where the balancing exercise has been undertaken by the national authorities, the ECtHR will require strong reasons to change their conclusions (para 79).
- 128 E.g. literature cited by E Seger *et al.*, *Tackling Threats to Informed Decision-making in Democratic Societies: Promoting Epistemic Security in a Technologically Advanced World* (Alan Turing Institute 2021).
- 129 Carme Colomina *et al.*, *The Impact of Disinformation on Democratic Processes*, 22 April 2021 (EP/EXPO/DROI/FWC/2019–01/LOT6/R/02) list a range of possible definitions for this term: pp 3–5.
- 130 *Ibid*, pp 11–12. The issue of state-sponsored propaganda and disinformation as a weapon of war or as a tactic as hybrid warfare lies outside the scope of this contribution.
- 131 *Lingens v Austria* App no 9815/82 (ECtHR, 8 July 1986), para 46.
- 132 Bernard Williams, *In the Beginning was the Deed* (Princeton University Press 2005) 74.
- 133 *Stoll* (n 67), para 103; *Bédat v Switzerland* App no 56925/08 (ECtHR, Grand Chamber, 29 March 2016); note also the reasoning in *Tierbefeürer* (n 99) on contribution to debate.
- 134 *Cicad* (n 80), para 58.
- 135 *Avagyan v Russia* App no 36911/20 (nyd).
- 136 This term has been used by e.g. the World Health Organisation, see e.g. <www.who.int/news/item/11-12-2020-call-for-action-managing-the-infodemic> accessed 18 January 2021.
- 137 Coloma *et al.* (n 129), pp 12, 21.
- 138 This is limited to where there is a direct connection between the claim and the state inaction: see e.g. *Sentges v the Netherlands* App no 27677/02 (ECtHR, 8 July 2003); *Pentiacova v Moldova* App no 14462/03 (ECtHR, 4 January 2005).
- 139 *Vilnes & Ors v Norway* App nos 52806/09 and 22703/10 (ECtHR, 5 December 2013), para 235, 239–240; it is unclear when the duty to provide information will be triggered.
- 140 Claire Wardle and Hossein Derakhshan *Information Disorder: Toward an Interdisciplinary Framework for Research and Policymaking* (Council of Europe, DGI 2017) 9 <<https://rm.coe.int/information-disorder-toward-an-interdisciplinary-framework-for-research/168076277c>> accessed 12 August 2021; Kate Jones *Online Disinformation and Political Discourse: Applying a Human Rights Framework*, Chatham House Research Paper, 2019 <www.chathamhouse.org/sites/default/files/2019-11-05-Online-Disinformation-Human-Rights.pdf> accessed 12 August 2021, 6 and 16.
- 141 Nicholas Negroponte, *Being Digital* (Vintage Books 1995); Eli Pariser, *The Filter Bubble: How the New Personalized Web Is Changing What We Read and How We Think* (Penguin Books 2011); note the existence of “filter bubbles” is contested, see e.g. Wardle and Derakhshan (n 140), pp 52–53.
- 142 Declaration by the Committee of Ministers on the manipulative capabilities of algorithmic processes (Decl(13/02/2019)1), 13 February 2019, para 9.

- 143 Digital Services Act (n 38).
- 144 Renee Diresta, 'Free Speech is Not the Same as Free Reach', *Wired*, 30 August 2018.
- 145 *Sunday Times (No 1) v UK* App no 6538/74 (ECtHR, 26 April 1979), para 66 – see also e.g. *Sener v Turkey* App no 26680/95 (ECtHR, 18 July 2000), para 46; *Ukrainian Media Group v Ukraine* App no 72713/01 (ECtHR, 29 March 2005), para 38.
- 146 The ECtHR has recognised a right to specific information in some contexts: e.g. *Társaság a Szabadságjogokért v Hungary*, App no 37374/05 (ECtHR, 14 April 2009); *Youth Initiative for Human Rights v Serbia*, App no 48135/06 (ECtHR, 25 June 2013).
- 147 *Manole v Moldova* App no 13936/02 (ECtHR, 13 July 2010).
- 148 Council of Europe, Recommendation on measures to promote the public service value of the Internet (CM Rec (2007) 16), 7 November 2007; the EU Code on Disinformation could be seen as the sort of response that was envisaged, though it now seems that the European Democracy Action Plan is pushing for stronger obligations.
- 149 *Yildirim v Turkey* App no 3111/10 (ECtHR, 18 December 2012); *Cengiz* (n 1); but cf *Akdeniz* (n 33).
- 150 E.g. *Kharitonov v Russia* App no 10795/14 (ECtHR, 20 June 2020).
- 151 *GRA Stiftung gegen Rassismus und Antisemitismus v Switzerland*, App no 18597/13 (ECtHR, 9 January 2018), para 78.
- 152 *Lewandowska-Malec v Poland* App no 39660/07 (ECtHR, 18 September 2012), para 70.
- 153 A local councillor and a foundation against racism and antisemitism respectively.
- 154 Woods (n 25).
- 155 Irene Khan, Public Comment by UN Special Rapporteur on Freedom of Opinion and Expression on Facebook Oversight Board Case no. 2021–009, 9 September 2021 <www.ohchr.org/Documents/Issues/Opinion/Legislation/Case_2021_009-FB-UA.pdf> accessed 4 January 2022.